

Special Zoning Types



Zoning serves many purposes, including to:

- Segregate incompatible uses, such as keeping a highway away from a neighborhood
- Put the land to the use for which it's best suited
- Protect the livability of a community and its property values
- Evolve with the needs of the communities it serves

Mixed-Use Properties and PUDs



Mixed-use properties combine complementary uses such as residential and commercial. Often these are built with a retail space below and condominiums above. **Planned unit developments (PUDs)** are examples of mixed-use properties. In this case "planned unit development" describes both the type of the development and the regulatory process that allows the developer to meet the community's goals for land use and density without being restricted by existing zoning requirements. A PUD is planned and built as a single unit, with the type and location of uses and buildings fixed throughout the entire project. Using a PUD allows for innovative uses of spaces and structures to achieve planning goals.

In a PUD, individuals will own the building or unit they live in, and will share joint ownership with other members of the development or association. This differs from condominiums, in which the owners simply own the airspace of their individual units, and the buildings and common areas are jointly owned.

Cluster Zoning



Cluster zoning is a method of determining density by a specific area rather than lot-by-lot. This provides a developer with greater flexibility when placing improvements because only the total density requirement must be met. Because cluster zoning allows the developer to cluster residential properties closer together, it allows the flexibility to include large open spaces such as a park.

Cluster zoning is sometimes called **density zoning**, and it is part of a category of zoning called "smart zoning" to contrast it with traditional zoning ordinances that require the same density for every lot within a given area.

Cumulative Zoning



Zoning use is ranked in a hierarchy (see below). A single-family residential zone would be considered the highest ranked zoning category. Lowest would be heavy industrial. **Cumulative zoning** allows any use that would be allowed in a higher-use, less intensive zone to also be permitted in a lower-use, more intensive zone. For example, a residential unit could be built in an industrial zone, but an industrial building isn't permitted to be built in a residential zone. Similarly, a single-family home could be built on a lot zoned for multi-family, but the reverse would not be true. Higher uses are usually permitted in lower zoning areas. When they aren't, this zone would be referred to as non-cumulative or **exclusive**.

- Single-family residential
- Multi-family residential
- Commercial housing
- Offices
- Retail
- Light industrial
- Heavy industrial



Exclusive-use zoning, as you might guess, is the opposite of mixed-use zoning. With exclusive-use zoning, only one type of land use is allowed within a particular zone or district. Exclusive use zoning is frequently seen in agricultural areas to protect farmland from conversion to other uses. Site development standards within an exclusive-use agricultural zone might include maximum lot area for non-farm, residential use, minimum lot widths and setbacks.



When a property use is no longer permitted due to a subsequent zoning change, the use is said to be **non-conforming**. Generally an exception is made, and the use is "grandfathered in" provided the property that enjoys the nonconforming use doesn't change. So if a corner grocery store suddenly finds itself in the middle of a residential neighborhood due to zoning changes, it may remain as a corner grocery store, but it may not expand into a big box super store. In addition, if more than 50% of the structure is damaged by fire or other disaster, usually zoning restrictions won't allow it to be rebuilt. If the owner abandons the building, the non-conforming use is disallowed.

Sometimes amortization of the use is applied, where the end of a structure's estimated useful economic life is also the end of the non-conforming use. A property that this would apply to might be a junkyard, or a billboard. The idea of amortization is to allow the owner to recoup the original investment.

Contrasted with non-conforming use are **non-conforming lots** -lots that may not meet the size requirements to build upon. Property owners are often allowed to build on non-conforming lots, but are usually required to meet setback requirements.



Spot zoning is when a specific property is rezoned for another use within a zoning area. Property owners sometimes try to rezone from residential to commercial, for instance, to increase the value of their land; however, it has a negative impact on the value of nearby properties. Spot zoning is illegal when it is solely for the property owner's benefit or devalues surrounding properties.